

Naaz Fatima v. Purvanchal Vidhut Vitrana Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 10 October 2023 · 2023:AHC:194859-DB · WRIT - C No. - 34644 of 2023 · **Mutation application to be decided under clause 4.44 within three weeks**

HEADNOTE

With consent, the Division Bench directed the Executive Engineer, Purvanchal Vidhut Vitran Nigam Ltd., Allahabad, to process and decide the petitioner's application for mutation of an electricity connection under clause 4.44 of the U.P. Electricity Supply Code, 2005, preferably within three weeks of production of a certified copy. Mutation was not granted or refused on merits.

FACTUAL SUMMARY

Naaz Fatima filed a writ petition against Purvanchal Vidhut Vitran Nigam Ltd. and another, complaining that an application for mutation of an electricity connection in the petitioner's name had not been processed under clause 4.44 of the U.P. Electricity Supply Code, 2005. The second respondent is the Executive Engineer of the licensee at Allahabad. Counsel for the licensee told the Court that an application seeking mutation under clause 4.44 would be processed in a time-bound manner. Both sides consented to disposal of the petition on that basis.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

mutation of electricity connection

HOLDING

With consent of counsel, the writ is disposed of by directing the Executive Engineer, Purvanchal Vidhut Vitran Nigam Ltd., Allahabad, to process and decide the petitioner's application for mutation of the electricity connection under clause 4.44 of the U.P. Electricity Supply Code, 2005, as expeditiously as possible, preferably within three weeks from production of a certified copy of the order. ¶ 4

PRINCIPLE TAGS

clause-4.44-mutation-application-to-be-processed On consent, the Executive Engineer must process and decide the petitioner's mutation application under clause 4.44 within three weeks of production of a certified copy. The Court stated no rule on prescribed form, clearance of arrears, or the recorded consumer's continuing liability. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO MUTATION OF THE ELECTRICITY CONNECTION UNDER CLAUSE 4.44, INCLUDING ANY REQUIREMENT OF A PRESCRIBED FORM OR CLEARANCE OF ARREARS

The Executive Engineer was left to process and decide the application. The Court did not construe clause 4.44. ¶ 4